IN THE
INDIANA COURT OF APPEALS
CAUSE NO. 20A-PC-00686

ERIC BENSON SKEENS	)	**Huntington Circuit Court**
DOC #196051	)	
Appellant	)	**Hon. Davin G. Smith, Judge**
(Petitioner below)	)	
	)	
vs.	)	
	)	
STATE OF INDIANA,	)	
Appellee	)	
(Respondent below)	)	

BRIEF OF APPELLANT

Cynthia M. Carter
Atty No. 233305-49
Law Office of Cynthia M. Carter, LLC
212 W. 10th Street, Suite D-320
Indianapolis, IN 46202
P: (317) 955-7997
F: (317) 454-0710
AttorneyCarter@cynthiamcarterlaw.com

Counsel for the Appellant

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Constitution

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Statement of Issues

I. Whether the court proceedings violated the Fourteenth Amendment right to Due Process and *Brady v. Maryland* when false testimony by the State's agent, then-detective Melbourne Hunnicutt, led to a critical and outcome determinative discovery violation.

II. Whether trial counsel, Richard Thonert, failed to properly represent Skeens during pre-trial and trial proceedings and violated the Sixth Amendment and prevented a fair trial when trial counsel did not properly investigate the case, did not properly cross-examine the witnesses, did not secure exculpatory evidence, and did not properly object to the sexual assault nurse examiner (SANE) providing expert testimony despite the fact the defense received no discovery concerning studies to which the SANE testified.

III. Whether appellate counsel, Jeremy Nix, failed to properly represent Skeens in his direct appeal and thereby violated the Sixth Amendment right to counsel and prejudiced the outcome of the proceedings resulting in the conviction being upheld.

Statement of Case

1. On December 10, 2008, the State charged Eric Benson Skeens ("Skeens") by Information with the following: Count 1 Child Molesting as an A felony (intercourse with K.W.); Count 2 Child Molesting as an A felony (deviate sexual conduct performing oral sex upon K.W.); Count 3 Child Molesting as an A felony (deviate sexual conduct receiving oral sex from K.W.); Count 4 Child Molesting as an A felony (deviate sexual conduct penetrating the sex organ of K.W. with an object); Count 5 Child Molesting as a C felony (fondling). App. Vol. III at 61-62.

2. On July 23, 2009, a jury found Skeens guilty as charged on all five counts. App. Vol. III at 65.

3. On August 31, 2009, the trial court (then Judge Thomas Hakes presiding) sentenced Skeens to 45 years on each of the first four counts and to seven years on Count 5 and ran all sentences consecutively for an aggregate sentence of 187 years. *Id.*

4. Skeens appealed, and on August 25, 2010, a panel of this Court affirmed his convictions and determined the trial court did not abuse its discretion in determining the aggravating and mitigating factors at sentencing. The Court found that the 187-year sentence was inappropriate in light of the nature of the offense and the character of the offender and reduced the aggregate sentence to 90 years. App. Vol. III at 66.

5. Skeens sought transfer to the Indiana Supreme Court, and, on November 3, 2010, the Court declined to accept transfer.

6. On January 27, 2011, Skeens filed a *pro se* Petition for Post-Conviction Relief. App. Vol. II at 16-35.

7. On February 1, 2011, the State filed its Answer to the *pro se* Petition for Post-Conviction Relief. *Id.* at 37-38.

8. On November 30, 2018, Skeens, by counsel, filed his first amended Petition for Post-Conviction Relief. *Id.* at 112-122.

9. On December 28, 2018, the State filed its Answer to the first amended Petition for Post-Conviction Relief. *Id.* at 129-130.

Statement of Facts

Eric Benson Skeens ("Skeens") and his ex-wife, R.W., met in 2003 and married in December of 2004. Mother's child, K.W., was born in 2000 and considered Skeens her "Dad" though he was not her biological father. *See Skeens v. State*, Cause No. 35A05-0909-CR-515 (Aug. 25, 2010) (hereinafter "*Skeens I*") at pp. *1-2. Skeens and R.W. divorced in 2006 but continued living together. *Id.* at *2.

Additional facts will be added as is necessary and appropriate for developing Petitioner's argument. Skeens will not recite a witness by witness summary of the post-conviction testimony here because he understands the Court's time is valuable and does not see the need to unnecessarily repeat information.

Summary of Argument

The State's lead detective, Melbourne Hunnicutt, who did not testify at trial and who was contemporaneously suspended for viewing pornography on the job, gave false testimony at a probable cause and search warrant hearing and again at a pre-trial hearing where Trial Counsel for Skeens sought exculpatory evidence. Hunnicutt's false testimony led to the suppression and spoliation of exculpatory evidence. The fact Hunnicutt was suspended for viewing pornography at work did not come to light until post-conviction proceedings. The false testimony by the State's agent was a violation of Due Process and prevented Skeens from receiving a fair trial.

Trial Counsel, Richard Thonert, failed to adequately represent Skeens. He did not properly investigate the case, failed to confront and cross-examine the witnesses, failed to ask the child victim even one question on cross-examination, and even told the jury his client was guilty.

Skeens received ineffective assistance from Appellate Counsel when appellate counsel failed to raise any of the preserved issues and instead pursued a very weak sufficiency issue as the first issue.

Argument

Issue 1

I. The trial proceedings violated the Fourteenth Amendment right to Due Process and *Brady v. Maryland* when false testimony by the State's agent, then-detective Melbourne Hunnicutt, led to a critical and outcome determinative discovery violation.

On March 5, 2009, Trial Counsel filed a Non-Party Motion to Produce. *See* Pet. Ex. 1 (see specifically App. at pp. 52-54). The purpose of that motion was to obtain access to computers from K.W.'s home that were shared by K.W. and her mother. *Id.* On March 31, 2009, the Judge issued an order which, in pertinent part, read as follows:

> Hunnicutt indicated that the search warrant obtained relating to Defendant's computers had to do with the Kosciusko County case, and not the matter before the Court. The defendant's motion to produce is therefore denied.
>
> *Id.* at p. 86.

Issue 3

III. The proceedings violated the Sixth Amendment right to counsel because appellate counsel was ineffective.

The right to effective appellate counsel was not adequately safeguarded because the brief Appellate Counsel submitted contained no reference to defense counsel's objections at trial including conditioning the jury, hearsay, vouching, uncharged misconduct, the prosecutor's having testified on behalf of K.W., etc. Failing to raise any of the preserved issues does not satisfy the Sixth Amendment right to counsel. *See People v. Stokes*, 95 N.Y.2d 633, 638-639, 744 N.E.2d 1153, 1156, 722 N.Y.S.2d 217, 220 (2001) (finding defendant's right to appellate counsel was not adequately safeguarded because the brief submitted by appellate counsel contained no reference to the evidence or to defense counsel's objections at trial). There is a reasonable probability Skeens could have received a better outcome had his appeal been handled properly.

Conclusion

The mistakes at trial and on appeal, both by the State's agent Hunnicutt and by the attorneys, prejudiced the outcome of the case and prevented Skeens from receiving a fair trial. The convictions should be overturned and the case remanded so that Skeens can have a new and fair trial.

Respectfully submitted,
/s/ Cynthia M. Carter
Atty No. 233305-49
Counsel for Skeens

Word Count Verification

I, Cynthia M. Carter, verify that the foregoing Brief of Appellant contains no more than 14,000 words.

Respectfully submitted,
/s/ Cynthia M. Carter
Atty No. 233305-49
Counsel for Skeens

Certificate of Service

I, Cynthia M. Carter, verify that a true and accurate copy of the foregoing was served upon the Indiana Attorney General, Curtis T. Hill, via the Court's Electronic Filing System this 10th day of August, 2020.

Respectfully submitted,
/s/ Cynthia M. Carter
Atty No. 233305-49
Counsel for Skeens